

SENATE No. 1549**The Commonwealth of Massachusetts**

PRESENTED BY:

Patricia D. Jehlen

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act to increase access to disposable menstrual products.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	
<i>John F. Keenan</i>	<i>Norfolk and Plymouth</i>	<i>1/29/2025</i>
<i>Michael J. Barrett</i>	<i>Third Middlesex</i>	<i>1/31/2025</i>
<i>Patrick M. O'Connor</i>	<i>First Plymouth and Norfolk</i>	<i>2/6/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>2/6/2025</i>
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/10/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>2/10/2025</i>
<i>Sal N. DiDomenico</i>	<i>Middlesex and Suffolk</i>	<i>2/20/2025</i>
<i>Bruce E. Tarr</i>	<i>First Essex and Middlesex</i>	<i>2/27/2025</i>
<i>Thomas M. Stanley</i>	<i>9th Middlesex</i>	<i>2/27/2025</i>
<i>Manny Cruz</i>	<i>7th Essex</i>	<i>3/3/2025</i>
<i>Michael D. Brady</i>	<i>Second Plymouth and Norfolk</i>	<i>3/3/2025</i>
<i>Brendan P. Crighton</i>	<i>Third Essex</i>	<i>3/3/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/6/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>3/10/2025</i>
<i>Robyn K. Kennedy</i>	<i>First Worcester</i>	<i>3/10/2025</i>
<i>Jason M. Lewis</i>	<i>Fifth Middlesex</i>	<i>3/17/2025</i>
<i>Mark C. Montigny</i>	<i>Second Bristol and Plymouth</i>	<i>3/25/2025</i>

<i>Nick Collins</i>	<i>First Suffolk</i>	<i>3/25/2025</i>
<i>Rebecca L. Rausch</i>	<i>Norfolk, Worcester and Middlesex</i>	<i>4/8/2025</i>
<i>Edward J. Kennedy</i>	<i>First Middlesex</i>	<i>4/18/2025</i>
<i>Pavel M. Payano</i>	<i>First Essex</i>	<i>6/28/2025</i>

SENATE No. 1549

By Ms. Jehlen, a petition (accompanied by bill, Senate, No. 1549) of Patricia D. Jehlen, John F. Keenan, Michael J. Barrett, Patrick M. O'Connor and other members of the Senate for legislation to increase access to disposable menstrual products. Public Health.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE SENATE, NO. 1381 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act to increase access to disposable menstrual products.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Chapter 23B of the General Laws is hereby amended by adding the
2 following section:-

3 Section 31. (a) As used in this section, the following words shall have the following
4 meanings unless the context clearly requires otherwise:

5 “Disposable menstrual products”, products used by a menstruating individual including,
6 but not limited to, sanitary napkins, tampons and underwear liners.

7 “Menstruating individual”, a person who menstruates.

8 (b) Any provider of temporary housing assistance, including, but not be limited to, a
9 family shelter, a shelter for adults, a hotel used for emergency shelter, an emergency apartment, a

domestic violence shelter, a runaway and homeless youth shelter or a safe house for refugees, shall provide disposable menstrual products at no cost to a menstruating individual. The disposable menstrual products shall be available in a convenient manner that does not stigmatize the individual seeking such products.

SECTION 2. Chapter 71 of the General Laws is hereby amended by inserting after section 3 the following section:-

Section 3A. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:-

“Disposable menstrual products”, products used by a menstruating individual including, but not limited to, sanitary napkins, tampons and underwear liners.

“Menstruating individual”, a person who menstruates.

(b) Every primary and secondary school shall provide disposable menstrual products at no cost to students. The disposable menstrual products shall be available in a convenient manner that does not stigmatize the individual seeking such products, including, but not limited to, in restrooms for menstruating individuals.

SECTION 3. Chapter 127 of the General Laws is hereby amended by adding the following section:-

Section 170. (a) As used in this section, the following words shall have the following meanings unless the context clearly requires otherwise:

“Administrator”, the keeper of a lock-up facility under chapter 40, the superintendent of a correctional facility under chapter 125, a sheriff or special sheriff in charge of a jail, house of

correction or regional lock-up facility under chapter 126, the colonel of state police and any other official who oversees a facility used for the detention of persons arrested and held in custody or serving a sentence.

“Disposable menstrual products”, products used by a menstruating individual including, but not limited to, sanitary napkins, tampons and underwear liners.

“Menstruating individual”, a person who menstruates.

(b) The administrator shall provide disposable menstrual products to menstruating individuals held or housed in the facility overseen by the administrator at no cost. The disposable menstrual products shall be available in a convenient manner that does not stigmatize the individual seeking such products.